

COUNCIL DECISION 2012/699/CFSP

CELEX id	32012D0699
Document type	Decision
Policy domain	European Union
Year	2012
Legal actor type	Public agency
Applicable role	Other
Language	en

COUNCIL DECISION 2012/699/CFSP

of 13 November 2012

on the Union support for the activities of the Preparatory Commission of the Comprehensive Nuclear-Test-Ban Treaty Organisation in order to strengthen its monitoring and verification capabilities and in the framework of the implementation of the EU Strategy against Proliferation of Weapons of Mass Destruction

THE COUNCIL OF THE EUROPEAN UNION,

Having regard to the Treaty on European Union, and in particular Article 26(2) and Article 31(1) thereof,

Having regard to the proposal from the High Representative of the Union for Foreign Affairs and Security Policy,

Whereas:

(1)

On 12 December 2003, the European Council adopted the EU Strategy against Proliferation of Weapons of Mass Destruction (the Strategy), Chapter III of which contains a list of measures that need to be taken both within the Union and in third countries to combat such proliferation.

(2)

The Union is actively implementing the Strategy and is giving effect to the measures listed in Chapter III thereof, in particular through releasing financial resources to support specific projects conducted by multilateral institutions, such as the Provisional Technical Secretariat of the Comprehensive Nuclear-Test-Ban Treaty Organisation (CTBTO).

(3)

On 17 November 2003, the Council adopted Common Position 2003/805/CFSP on the universalisation and reinforcement of multilateral agreements in the field of non-proliferation of weapons of mass destruction and means of delivery (1). That Common Position calls, inter alia, for the promotion of the signature and ratification of the Comprehensive Nuclear-Test-Ban Treaty (CTBT).

(4)

The States Signatories of the CTBT have decided to establish a Preparatory Commission, endowed with legal capacity, and which has standing as an international organisation, for the purpose of carrying out the effective implementation of the CTBT, pending the establishment of the CTBTO.

(5)

The early entry into force and universalisation of the CTBT and the strengthening of the monitoring and verification system of the Preparatory Commission of the CTBTO are important objectives of the Strategy. In this context, the nuclear tests carried out by the Democratic People's Republic of Korea in October 2006

and May 2009 further underlined the importance of the early entry into force of the CTBT and the need for an accelerated building-up and strengthening of the CTBT monitoring and verification system.

(6)

The Preparatory Commission of the CTBTO is engaged in identifying how its verification regime could best be strengthened, including through the development of noble gas monitoring capabilities and efforts aimed at fully involving States Signatories of the CTBT in the implementation of the verification regime.

(7)

In the framework of the implementation of the Strategy, the Council has adopted three Joint Actions and one Decision supporting the activities of the Preparatory Commission of the CTBTO, namely Joint Action 2006/243/CFSP (2) in the area of training and capacity building for verification, and Joint Action 2007/468/CFSP (3), Joint Action 2008/588/CFSP (4) and Decision 2010/461/CFSP (5) in order to strengthen the monitoring and verification capabilities of the Preparatory Commission of the CTBTO.

(8)

That Union support should be continued.

(9)

The technical implementation of this Decision should be entrusted to the Preparatory Commission of the CTBTO which, on the basis of its unique expertise and capabilities through the network of the International Monitoring System (comprising over 280 facilities in 85 countries) and the International Data Centre, is the sole international organisation having the ability and legitimacy to implement this Decision. The projects as supported by the Union can only be financed through an extra-budgetary contribution to the Preparatory Commission of the CTBTO,

HAS ADOPTED THIS DECISION:

Article 1

1. For the purpose of ensuring the continuous and practical implementation of certain elements of the Strategy, the Union shall support the activities of the Preparatory Commission of the CTBTO in order to further the following objectives:

(a)

to strengthen the capabilities of the CTBT monitoring and verification system, including in the field of radionuclide detection;

(b)

to strengthen the capabilities of the States Signatories of the CTBT to fulfil their verification responsibilities under the CTBT and to enable them to benefit fully from participation in the CTBT regime.

2. The projects to be supported by the Union shall have the following specific objectives:

(a)

to provide technical assistance to countries in Eastern Europe, Latin America and the Caribbean, South-East Asia, the Pacific and the Far East, to enable them to fully participate in and contribute to the CTBT monitoring and verification system;

(b)

to support the International Monitoring System in order to improve the detection of possible nuclear explosions, specifically by supporting selected auxiliary seismic stations and radionuclide background measurement and mitigation;

(c)

to strengthen the verification capabilities of the Preparatory Commission of the CTBTO in the areas of on-site inspections, specifically by supporting the preparation and conduct of the next Integrated Field

Exercise;

(d)

to support the promotion of the CTBT and the long-term sustainability of its verification regime through the Capacity Development Initiative, that is focused on selected training and education programmes provided worldwide, including programmes hosted by the Preparatory Commission of the CTBTO.

Those projects shall be carried out for the benefit of all States Signatories of the CTBT.

A detailed description of the projects is set out in the Annex.

Article 2

1. The High Representative of the Union for Foreign Affairs and Security Policy (the High Representative) shall be responsible for the implementation of this Decision.

2. The technical implementation of the projects referred to in Article 1(2) shall be carried out by the Preparatory Commission of the CTBTO. It shall perform this task under the control of the High Representative. For this purpose, the High Representative shall enter into the necessary arrangements with the Preparatory Commission of the CTBTO.

Article 3

1. The financial reference amount for the implementation of the projects referred to in Article 1(2) shall be EUR 5 185 028.

2. The expenditure financed by the amount stipulated in paragraph 1 shall be managed in accordance with the procedures and rules applicable to the Union budget.

3. The Commission shall supervise the proper management of the financial reference amount referred to in paragraph 1. For that purpose, it shall conclude a financing agreement with the Preparatory Commission of the CTBTO. The financing agreement shall stipulate that the Preparatory Commission of the CTBTO is to ensure visibility of the Union contribution, commensurate with its size.

4. The Commission shall endeavour to conclude the financing agreement referred to in paragraph 3 as soon as possible after the entry into force of this Decision. It shall inform the Council of any difficulties in that process and of the date of conclusion of the financing agreement.

Article 4

1. The High Representative shall report to the Council on the implementation of this Decision on the basis of regular reports prepared by the Preparatory Commission of the CTBTO. Those reports shall form the basis for the evaluation carried out by the Council.

2. The Commission shall provide information on the financial aspects of the implementation of the projects referred to in Article 1(2).

Article 5

This Decision shall enter into force on the date of its adoption.

It shall expire 24 months after the date of the conclusion of the financing agreement referred to in Article 3(3), or six months after the date of its entry into force if no financing agreement has been concluded by then.

Done at Brussels, 13 November 2012.